

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

15 CV 3785

JOHN PIERALISI,

Plaintiff,

v.

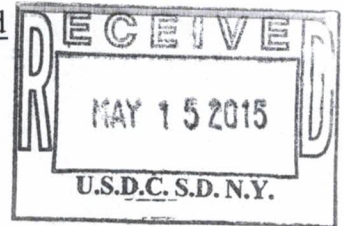
THE CITY OF NEW YORK, P.O. #C0084, P.O. #C0241, DET. PAUL RIVERA (Shield #1283), and P.Os "JOHN DOE" #1-15, Individually and in their Official Capacities (the names "John Doe" being fictitious, as the true names are presently unknown),

Defendants.

JUDGE ABRAMS

COMPLAINT

Jury Trial Demanded



Plaintiff John Pieralisi ("Plaintiff"), by his attorney, Kim E. Richman, complaining of the Defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

Plaintiff brings this action for damages and attorneys' fees pursuant to 42 U.S.C. §§ 1983 and 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK ("CITY"), P.O. #C0084, P.O. #C0241, DET. PAUL RIVERA (Shield #1283), and P.Os "JOHN DOE" #1-15 (collectively "Defendants"), as Officers of the New York City Police Department and other agencies of the City of New York, all acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights under the Constitution and laws of the United States and of the State of New York.

JURISDICTION

1. This action is brought pursuant to 42 U.S.C. §§ 1983, 1988, and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

2. Jurisdiction is invoked pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights.

3. Supplemental jurisdiction is invoked pursuant to 28 U.S.C. § 1367 as to any and all of Plaintiff's claims arising under New York state law as such claims share a common nucleus of operative facts with Plaintiff's federal claims herein.

VENUE

4. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

TRIAL BY JURY

5. Plaintiff demands a trial by jury on each and every one of her claims as pled herein pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff JOHN PIERALISI was at all relevant times a resident of Leland, Mississippi.

7. Defendant CITY is and was at all relevant times a municipality of the State of New York. Defendant CITY operates, manages, directs and controls the New York City Police Department ("NYPD") and other municipal agencies and departments that are responsible for carrying out law enforcement activities under color of state law.

8. Defendants P.O. #C0084, P.O. #C0241, DET. PAUL RIVERA (Shield #1283), and P.Os "JOHN DOE" #1-15 are and were at all relevant times police or correction officers, supervisors, and/or policymakers employed by Defendant CITY with the NYPD and/or other CITY agencies and acting under color of state law.

9. At all times relevant hereto and in all their actions alleged herein, Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of

Defendant CITY and its agencies and departments, including the NYPD, and pursuant to their authority as employees, servants and agents of the NYPD, and/or other agencies, and within the scope of their employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and law enforcement officers.

10. Defendant CITY was responsible for the hiring, training, supervision, discipline, retention and promotion of officers, supervisors, and employees within its agencies, including the NYPD and/or other agencies which employed the Defendants herein.

FACTS

11. This action stems from the unlawful search, arrest, and prosecution of Plaintiff JOHN PIERALISI, all of which was undertaken by Defendants in the absence of probable cause or any other legal justification.

12. On or about December 28, 2013, at approximately 5:28 pm, plaintiff was lawfully present at the southwest corner of 8th Avenue and West 33rd Street in Manhattan, which is located in the Southern District of New York.

13. At or about this time, Defendant NYPD officers, without probable cause or reasonable suspicion against Plaintiff for any crime, approached Plaintiff and ordered him to place his hands behind his back.

14. Defendant NYPD officers told Plaintiff that he was being arrested for selling drugs, shocking and emotionally distressing Plaintiff and his stepson, who was standing nearby and intended to attend a concert at Madison Square Garden with Plaintiff.

15. Plaintiff repeatedly told Defendant NYPD officers that he had done nothing wrong and that he had not sold drugs and did not possess drugs.

16. Despite lacking any probable cause, Defendant NYPD officers searched Plaintiff in full public view and found no contraband nor anything else suggesting Plaintiff was involved in

any criminal activity whatsoever.

17. Defendant NYPD officers handcuffed and arrested Plaintiff without any probable cause, reasonable suspicion or evidence of wrongdoing against him.

18. Defendant NYPD Officers then placed Plaintiff into an NYPD van, separating Plaintiff from his stepson who remained on the street, further distressing Plaintiff and causing him anxiety and fear.

19. Defendant NYPD Officers transported Plaintiff to the NYPD 14th Precinct.

20. Plaintiff remained detained at the NYPD 14th Precinct for several hours before being transferred to Manhattan Central Booking, where he remained overnight until his arraignment at approximately 4:15 p.m. on December 29, 2013.

21. Plaintiff was arraigned under Docket No. 2013NY097113 in Manhattan Criminal Court on the basis of an accusatory instrument signed by Defendant DET. PAUL RIVERA containing false allegations, including the allegation that Plaintiff had possessed and sold illegal narcotics, and charging Plaintiff with two felonies.¹

22. After his arraignment on December 29, 2013, Plaintiff was finally released from custody, after having been deprived of his liberty for approximately twenty-one (21) hours.

23. A news story entitled “Phish Fans Encounter Crackdown at Garden,” published by The New York Times on December 31, 2013, mentioned Plaintiff specifically by name and accused him of participating an illegal drug transaction during the incident that gives rise to this civil case.

24. The false criminal complaint against Plaintiff was the exclusive source used by The New York Times in making these accusations against him, including that Plaintiff “offered to keep

¹ Plaintiff was charged with: PL 220.06(1) – Criminal Possession of a Controlled Substance in the Fifth Degree; and PL 220.31 – Criminal Sale of a Controlled Substance in the Fifth Degree.

watch as his partners . . . sold some mushrooms on the southwest corner of Eighth Avenue and 33rd Street.”

25. The New York Times story humiliated Plaintiff and caused him severe emotional distress, particularly as he was in the midst of defending himself against these entirely baseless criminal charges in a city where he did not live.

26. On January 3, 2014, all charges against Plaintiff were dismissed in his favor. As a result of the aforementioned violations of his civil rights, Plaintiff was subjected to the humiliation and emotional distress of being stopped and frisked, arrested, searched and led away in full public view in front of his peers, detained and deprived of his liberty for approximately twenty-one (21) hours, and subjected to the stigma of being prosecuted on felony drug charges, all of which resulted in damage to his esteem and reputation within his community.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

27. Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

28. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

29. All of the aforementioned acts by Defendants deprived Plaintiff of the rights, privileges and immunities guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, said violations being actionable under 42 U.S.C. § 1983.

30. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police and law enforcement officers, with the actual and/or apparent authority attendant thereto.

31. The acts complained of were carried out by the aforementioned individual

Defendants in their capacities as police and law enforcement officers, pursuant to the customs, usages, practices, procedures, and rules of Defendant CITY and its NYPD, all under the supervision of ranking officers of said department.

32. Defendants, collectively and individually, while acting under color of state law, violated Plaintiff's civil rights; these violations were driven and motivated by, reflective of and carried out pursuant to a custom, usage, practice, procedure or rule of Defendant CITY that is forbidden by the Constitution of the United States.

33. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983**

34. Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

35. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper and false arrest by Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.

36. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time and Plaintiff was at all times aware of his confinement; Plaintiff was put in fear for his safety and subjected to handcuffing and other physical restraints, without probable cause.

37. As a result of his false arrest, Plaintiff was subjected to humiliation, ridicule and disgrace before his neighbors and peers, confinement and emotional distress. Plaintiff was discredited in the minds of many members of his community.

38. The acts of Defendants were intentional, wanton, malicious, reckless and oppressive and entitle Plaintiff to an award of punitive damages.

THIRD CLAIM FOR RELIEF:
MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983

39. Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

40. Defendants employed regularly issued legal process by arresting, processing, and initiating criminal proceedings against Plaintiff to forbear him of liberty and the lawful use of property.

41. Defendants acted with intent to do harm as there was at no point any reasonable suspicion or probable cause to subject Plaintiff, who was acting lawfully, to public humiliation, an unreasonable search, detention, arrest, booking, imprisonment, and prosecution.

42. Defendants undertook the aforementioned acts in order to obtain a collateral objective outside the legitimate ends of the process, namely to arrest persons known to be innocent to improve the arrest numbers of the NYPD. This abuse of power is outside of and contrary to the legitimate use of the law enforcement and criminal justice processes and undermines the civil rights of persons such as Plaintiff for whom there is no reasonable suspicion or probable cause as to any alleged criminal activity.

43. As a result of Defendants' unlawful acts, Plaintiff suffered numerous violations of his constitutional rights, including deprivation of liberty following his arrest.

44. The acts of Defendants were intentional, wanton, malicious, reckless and oppressive and entitle Plaintiff to an award of punitive damages.

**FOURTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

45. Plaintiff repeats and re-alleges each and every allegation set forth in the preceding paragraphs with the same force and effect as if fully set forth herein.

46. Defendants initiated criminal proceedings against Plaintiff without probable cause or reason to believe that the criminal charges against him could succeed and with actual malice, thereby causing Plaintiff to be prosecuted on baseless charges and to suffer a significant deprivation of liberty in connection therewith.

47. The criminal charges against Plaintiff were terminated in his favor.

48. Defendants and their agents, servants, and employees carried out all of the aforementioned acts under color of state law.

49. Defendants' unlawful prosecution of Plaintiff without probable cause and denial of associated due process rights, as described herein, violated Plaintiff's rights under the Constitution, for which Defendants are individually liable.

50. As a result of Defendants' malicious prosecution and other unlawful acts, Plaintiff was subjected to humiliation, ridicule, and disgrace before his neighbors and peers. Further, as a result of Defendants' unlawful acts, Plaintiff was discredited in the minds of many members of his community.

**FIFTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

51. Plaintiff repeats each and every allegation contained in the paragraphs above and

incorporates such allegations by reference as if fully stated herein.

52. Those defendants that were present during the time when Plaintiff's constitutional rights were violated, but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

53. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, and Fourteenth Amendments.

54. As a direct and proximate result of this unlawful conduct, Plaintiff was subjected to humiliation, ridicule, and disgrace before her family and peers, confinement, pain and suffering, embarrassment and emotional distress.

**SIXTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

55. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with the same force and effect as if fully set forth herein.

56. Defendants searched, seized and prosecuted Plaintiff despite a complete lack of cause against her, notwithstanding their knowledge that such actions would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

57. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police and law enforcement officers and officials, with the entire actual and/or apparent authority attendant thereto.

58. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of Defendant CITY and its agencies, including the NYPD, all under the supervision of ranking officers of said department.

59. The aforementioned customs, policies, usages, practices, procedures and Defendant CITY include prosecuting individuals without reasonable suspicion or having probable cause as to each individual and without evidence of each individual's criminal activity, arresting persons known to be innocent in order to meet "productivity goals", falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony to protect other officers and meet productivity goals;

60. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

61. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of Plaintiff's constitutional rights.

62. Defendant CITY, as municipal policymaker in the training and supervision of Defendants P.O. #C0084, P.O. #C0241, DET. PAUL RIVERA (Shield #1283), and P.Os "JOHN DOE" #1-15, individually and in their official capacities, has pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their rights Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983 and the Constitution and laws of the State of New York.

63. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY constituted a deliberate indifference to Plaintiff's constitutional rights.

64. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

65. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY were the moving force behind the constitutional violation suffered by Plaintiff

as alleged herein.

66. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from search, seizure, arrest and imprisonment not based upon reasonable suspicion and probable cause;
- c. To be free from unlawful prosecution;
- d. To be free from infliction of emotional distress; and
- e. To receive equal protection under the law.

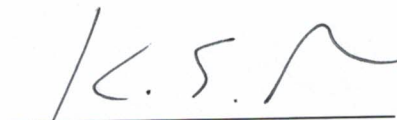
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.
2. Punitive damages in the amount of ONE MILLION (\$1,000,000.00) DOLLARS.
3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
May 15, 2015

Respectfully submitted,



Kim E. Richman

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